

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X	
MONIQUE ALLEN,	<u>SUMMONS</u>
Plaintiff,	Index No.:
-against-	Purchased:
CITY OF NEW YORK, ELIAS WALLEN, AND JOHN OR JANE DOE 1-10,	Plaintiff selects Kings County as the place of trial
Defendants.	The basis of venue is where the injury occurred
-----X	

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff’s Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 21, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

/s/ Junya Zeng
Junya Zeng, Esq.
Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

ELIAS WALLEN

Shield No. 19845, Tax No. 960068

Via 77th Precinct

127 Utica Ave,

Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:
MONIQUE ALLEN,

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, ELIAS WALLEN, AND JOHN OR
JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **MONIQUE ALLEN**, by and through the undersigned attorneys, **LAW OFFICES OF SAMEER NATH, PLLC**, as and for her complaint against the Defendants, **CITY OF NEW YORK, ELIAS WALLEN**, and **JOHN OR JANE DOE 1-10**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of his civil rights, as guaranteed and protected by the First, Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. The following claims arose on October 24, 2023, when Defendants, acting under color of state law, unlawfully assaulted, battered, and applied excessive force toward Plaintiff outside the the house located at 1144 Bergen Street, County of Kings, New York. As a result, Plaintiff suffered various physical, emotional and psychological injuries. Plaintiff required ambulance transport to NYC Health Hospitals in Kings County where she was examined and treated for her injuries.

3. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

5. At all relevant times herein Plaintiff, Ms. MONIQUE ALLEN ("Ms. Allen"), is an adult Hispanic female, who presently resides in Bronx, New York.

6. Defendant, City of New York ("City"), is a municipal corporation duly organized and existing organized under the laws of the State of New York.

7. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.

8. At all relevant times herein, Defendant City, acting through its New York City Police Department, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

9. At all relevant times herein, Defendant, City, was responsible for enforcing the rules and regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

10. At all relevant times herein, Defendant ELIAS WALLEN was a police officer, supervisor, policymaker or official employed by the NYPD or City of New York, under NYPD Shield No. 19845, Tax No. 960068 and further assigned to the 77th NYPD Precinct. As such Defendant ELIAS WALLEN was acting in the scope of his employment and under color of state law. Defendant ELIAS WALLEN is being sued in his official and individual capacities.

11. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

12. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.

13. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

14. Plaintiff's Notice of Claim was filed in compliance with the General Municipal Law.

15. More than thirty (30) days have elapsed since the filing of the Notice of Claim and this matter has neither been adjusted nor settled.

16. To date, Plaintiff has not conducted the examination, pursuant to GML § 50-h, or said hearing is deemed waived.

17. This action was filed within one (1) year and ninety (90) days since the causes of action alleged herein arose.

FACTUAL CHARGES

18. On October 24, 2023, at approximately 8:00 p.m., outside the premises located at 1144 Bergen Street, Brooklyn, New York, Ms. Allen was illegally targeted, because of her race, religion, national origin or other improper characteristic for adverse police action, by Defendants, including ELIAS WALLEN, and JOHN OR JANE DOE 1-10.

19. Plaintiff was lawfully present on the street and watching the police officers arresting other people outside her house. Plaintiff was standing behind Defendant ELIAS WALLEN and was not interfering with police activity in any way. Defendants, including ELIAS WALLEN and JOHN OR JANE DOE 1-10, illegally pushed, assaulted, and battered Plaintiff without probable cause, reasonable suspicion, or any legal justification whatsoever.

20. Defendant ELIAS WALLEN suddenly turned around, noticed Plaintiff was behind his back, and then started yelling at Plaintiff, without warning and without identifying any wrongdoing of Plaintiff, suddenly pushed Plaintiff back, violently and excessively elbowed and punched Plaintiff's face, especially the left cheek, and knocked her glasses off.

21. At the time Plaintiff was assaulted and battery in the face by Defendants ELIAS WALLEN, Plaintiff could not see things clearly and bumped into another police officer. Defendants, including ELIAS WALLEN and JOHN OR JANE DOE 1-10, pushed her back onto the ground and resulting in Plaintiff falling on the ground.

22. On said date and time, Plaintiff was not physically touching, or otherwise interfering any police officers, had no weapons on her person, and was not an imminent physical threat to Defendants, or anyone else.

23. The force of the impact caused Plaintiff's face and body to bleed, swollen, numb, and suffer various physical, emotional and psychological injuries.

24. Plaintiff was thereafter transported to NYC Health Hospitals in Kings County Emergency Room.

25. Plaintiff asserts that the Defendants, including ELIAS WALLEN, and JOHN OR JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

26. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil

27. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

28. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

29. Defendants' actions, which occurred without even the semblance of justification, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

30. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

31. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

32. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general,

and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants, JOHN OR JANE DOE 1-10.

33. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

34. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

35. The aforementioned acts of Defendants, including ELIAS WALLEN and JOHN OR JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

36. As a direct or proximate result of said acts, Plaintiff was caused to suffer irreparable reputational harm, physical injury, surgery, protracted disability, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Free Speech Retaliation Claim Under
New York State Law

37. The above paragraphs are here incorporated by reference as though fully set forth herein.

38. Plaintiff engaged in speech and activities that were protected by Article I, Section 8, of the New York State Constitution.

39. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

40. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of her liberty and the initiation of criminal charges against her.

41. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities or by chilling her desire to further participate or engage in such protected speech or activities.

42. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by Article I, Section 8, of the New York State Constitution, was violated by Defendants.

43. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

44. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 Against Individual Defendants

45. The above paragraphs are here incorporated by reference as though fully set forth herein.

46. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

47. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

48. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of her liberty and the initiation of criminal charges against her.

49. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing her from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

50. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

51. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

52. The above paragraphs are here incorporated by reference as though fully set forth herein.

53. At all relevant times, Defendants caused Plaintiff to fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

54. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

55. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

56. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

58. The above paragraphs are here incorporated by reference as though fully set forth herein.

59. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

60. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without her consent.

61. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Biased Based Profiling under
New York City Law

62. The above paragraphs are here incorporated by reference as though fully set forth herein.

63. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

64. Accordingly, Defendants violated Plaintiff's rights, pursuant to the Administrative Code of the City of New York, Section 14-151

65. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under

New York State law

67. The above paragraphs are here incorporated by reference as though fully set forth herein.
68. Plaintiff, as a Hispanic or Latino female, is a member of a racial minority and protected class.
69. Defendants discriminated against Plaintiff on the basis of her race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation
70. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.
71. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.
72. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
73. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.
74. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
75. Accordingly, Defendants violated Plaintiff's rights, pursuant to Article I, Section 11, of the New York State Constitution, Article VII, Section 79-N, of the New York Civil Rights Law and Section 296, Paragraph 13, of the New York Human Rights Law.
76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth herein.
79. Plaintiff, as a Hispanic or Latino female, is a member of a racial minority and protected class.
80. Defendants discriminated against Plaintiff on the basis of her race, color or ethnicity
81. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.
82. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of her Constitutional rights, or malicious or bad faith intent to injure Plaintiff.
83. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.
84. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff specifically the laws governing lawful use of force.
85. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.
86. Accordingly, Defendants violated Plaintiff's rights, under the Fourteenth Amendment.
87. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

88. The above paragraphs are here incorporated by reference as though fully set forth herein.

89. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

92. The above paragraphs are here incorporated by reference as though fully set forth herein.

93. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

94. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth.

97. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

98. Defendant City breached those duties of care.

99. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

100. Defendant City knew or reasonably should have known of its employees' propensity for committing civil rights violations.

101. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

103. The above paragraphs are here incorporated by reference as though fully set forth.

104. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

105. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

106. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

107. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

108. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

109. Defendant City's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, & Fourteenth Amendments thereto.

110. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act under
New York City Law

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

113. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the N.Y.C. Admin. Code § 10-403.

114. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- n) Awarding Plaintiff reasonable attorneys' fees and costs, pursuant to 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: Bayside, New York
August 21, 2024

SIM & DEPAOLA, LLP
Attorneys-at-Law
42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

/s/ Junya Zeng
Junya Zeng, Esq.
Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Junya Zeng, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of Sim & DePaola, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains her office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 21, 2024

SIM & DEPAOLA, LLP

/s/Junya Zeng
By: Junya Zeng, Esq.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MONIQUE ALLEN,

Plaintiff,

-against-

CITY OF NEW YORK, ELIAS WALLEN, AND JOHN OR JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Junya Zeng, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for